

22SMCV02427 22SMCV02427

County: los-angeles

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TENTATIVE RULING

July 17, 2026

22SMCV02427 (Monroy v. City of Los Angeles, et. al.)

RELEVANT BACKGROUND

On November 21, 2022, Plaintiff

Miriam Aracely Monroy (Plaintiff) filed an unverified complaint against Defendants City of Los Angeles (City), a public entity, and Yonit Mira Kovnator (Kovnator). (UMF 1.) Plaintiff alleges motor vehicle negligence, premises liability, and general negligence. Plaintiff alleges that the accident took place on December 29, 2021, at Palms Boulevard and Sepulveda Boulevard, Los Angeles, CA 90034. (UMF 2.)

On December 29, 2021, at

or about 6:35 pm, Plaintiff was driving, her 2001 Nissan Quest with California license plate number 4YCE528, westbound on Palms Blvd. (UMF 5.) Plaintiff told investigating officer that lights [traffic signal lights] at the intersection [Palms Blvd. and Sepulveda Blvd.] were out so she stopped her vehicle. Once the traffic cleared [Sepulveda Blvd.], she proceeded through the intersection and was struck by Defendant Kovnator's vehicle. (UMF 6.) Defendant Kovnator was driving her 2015 Acura TLX vehicle with California license plate number 7MPTC903, southbound on Sepulveda Blvd. (UMF 7.) Kovnator told investigating officer that she was alert. She felt she had the right-of-way, but could not remember if she came to a complete stop prior to entering the intersection [Palms Blvd. and

Sepulveda Blvd.]. Further, she did not realize until after the accident that the lights [traffic signal lights] were out. (UMF 8.)

The traffic lights were not working at the time of the incident due to a power outage. (UMF 18.) At approximately 3:33 p.m. that day, an energized overhead Circuit (059-16) Relayed out (lost power) due to a failed pole mount connection on Los Angeles Department of Water and Power's (LADWP) power pole number 407623M located at approximately Charnock Rd. and McLaughlin Ave., in the city of Los Angeles, California. (Id.)

Public agencies in California have adopted engineering guidance identifying high-volume intersections as appropriate locations for Battery Backup Systems. (PUMF 47; Gonzalez Decl.) The City of Los Angeles admitted that no Battery Backup System existed at the subject intersection on December 29, 2021. (UMF 48.) On December 29, 2021, the intersection of Sepulveda Boulevard and Palms Boulevard was a major signalized intersection carrying substantial daily traffic volumes. (PUMF 35.) Historical traffic counts maintained by the City of Los Angeles demonstrate that the subject intersection consistently experienced exceptionally high traffic volumes for many years preceding Plaintiff's collision. (PUMF 26.)

At 3:50:26 p.m. on December 29, 2021, the City received an Incident Detailed Report advising that the traffic signals at the intersection of Sepulveda Boulevard and Palms Boulevard were dark in all directions due to a power outage. (PUMF 55.) At 3:51:01 p.m., the City requested traffic control because the traffic signals were dark in all directions. (Id. 56.) At 5:02:13 p.m., the City determined that traffic control could not be provided because of low deployment staffing. (Id. 58.) Plaintiff's collision did not occur until approximately 6:35 p.m., approximately 2 hours and 45 minutes after the City first received notice that the traffic signals were dark. (PUMF 59.)

REQUEST FOR JUDICIAL NOTICE

The City's request for judicial notice of Plaintiff's complaint in this action is granted.

INSTANT MOTION

On July 2, 2026, the City filed the instant motion for summary judgment or adjudication. Plaintiff filed an opposition. No reply has been filed.

DISCUSSION

I.

THE

CITY'S MOTION FOR SUMMARY JUDGMENT OR ADJUDICATION

A. First and Third Causes of Action –
Motor Vehicle and General Negligence

The Court notes that Plaintiff does not oppose summary adjudication of the first or third causes of action, acknowledging that they are not independently maintainable against a public entity.

Accordingly, the City's motion for summary adjudication is GRANTED with respect to the first and first and third causes of action.

B. Second Cause of Action – Premises
Liability

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) "Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158, quotation marks omitted.)

Government Code section 835 sets out the exclusive conditions under which a public entity may be held directly liable for injuries caused by a dangerous condition of public property. Government Code section 835 provides:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its

property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

A

“dangerous condition” is a condition of public property that “create[s] a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Gov. Code, § 830.2.)²² “The existence of a dangerous condition is usually a question of fact, but may be resolved as a question of law if reasonable minds can come to but one conclusion.” (Chowdhury v. City of Los Angeles (1995) 38 Cal.App.4th 1187, 1194, as modified on denial of reh’g (Sept. 28, 1995).)

“A

public entity had actual notice of a dangerous condition within the meaning of subdivision (b) of Section 835 if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character.” (Gov. Code, § 835.2(a).

“A

public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character. On the issue of due care, admissible evidence includes but is not limited to evidence as to:

(1) Whether the existence of the condition and its dangerous character would have been discovered by an inspection system that was reasonably adequate (considering the practicability and cost of inspection weighed against the likelihood and magnitude of the potential danger to which

failure to inspect would give rise) to inform the public entity whether the property was safe for the use or uses for which the public entity used or intended others to use the public property and for uses that the public entity actually knew others were making of the public property or adjacent property.

(2) Whether the public entity maintained and operated such an inspection system with due care and did not discover the condition."

(Gov. Code, § 835.2(b).)

To

prevail on a claim for dangerous condition, a plaintiff must show that (1) the property was in a dangerous condition at the time of the injury; (2) the dangerous condition caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury incurred; and either: (4a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the condition, or (4b) the public entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it. (Song X. Sun v. City of Oakland (2008) 166 Cal.App.4th 1177, 1183; Metcalf v. County of San Joaquin (2008) 42 Cal.4th 1121, 1129, citing Brown v. Poway Unified School Dist. (1993) 4 Cal.4th 820, 829; Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112.) "A public entity may be held liable for a 'dangerous condition' of public property only if it has acted unreasonably in creating or failing to remedy or warn against the condition under the circumstances described in subsequent sections." (Metcalf, *supra*, at p. 1132.)

Government

Code section 830.4 provides, "a condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in section 21460 of the Vehicle Code." (Gov. Code, § 830.4.)

Here,

the City argues that the premises-liability claim is barred as a matter of law by Government Code section 830.4 and Chowdhury, *supra*, 38 Cal.App.4th 1187.

In

Chowdhury, “[a] man died in an automobile accident, after the driver of another vehicle failed to stop before proceeding through an intersection while the traffic signals were inoperative in all directions due to a power outage. The decedent’s wife and daughter sued the city for failing to take measures to avert the accident. The trial court found that the accident and death were caused by the city’s failure to correct a known “dangerous condition” of its property and by creating a “trap” for motorists, and awarded damages to plaintiffs. (Superior Court of Los Angeles County, No. BC020672, Stephen E. O’Neil, Judge.)” (Chowdhury, *supra*, 38 Cal.App.4th at p. 1188.) The Court of Appeal reversed the judgment, holding that the trial court erred in finding the accident and death were caused by the city’s failure to correct a known “dangerous condition” of its property. (*Ibid.*) The court reasoned that an obviously inoperative signal during a power outage does not amount to a dangerous condition as a matter of law because motorists approaching the intersection were bound not by the city’s inoperative light, but by Veh. Code, § 21800, which effectively transforms an inoperative signal into a stop sign. (*Ibid.*) Further, the court stated that the city could not be charged with foreseeing that a motorist would recklessly disobey traffic laws and speed through an intersection without heed to its inoperative traffic lights. (*Ibid.*) The court noted that a public entity is required to provide only roads that are safe for reasonably foreseeable careful use; and, if it can be shown that the property is safe when used with due care and that a risk of harm is created only when foreseeable users fail to exercise due care, then such property is not ‘dangerous’ within the meaning of Gov. Code, § 830, subd. (a). (*Ibid.*)

Plaintiff

opposes the City’s motion for summary judgment or adjudication with respect to the second cause of action for premises liability on the grounds that there are triable issues of material fact as to whether the subject intersection constituted a dangerous condition of public property. In support of her opposition, Plaintiff submits the declaration of her retained electrical engineering expert, Julie M. Gonzalez, P.E. (Gonzalez). opines, to a reasonable degree of engineering certainty, that: (1) the City’s failure to install a Battery Backup System created a dangerous condition of public property; (2) the subject intersection qualified for such protection under accepted traffic engineering principles; (3) the City’s request for traffic control immediately after learning the signals were dark demonstrates its recognition that the uncontrolled intersection presented a hazardous condition; and (4) the absence

of a Battery Backup System was a substantial factor in causing Plaintiff's collision.

In

an attempt to distinguish Chowdhury, Plaintiff argues that she does not allege that the power outage, standing alone, constituted the dangerous condition, but that the City created and maintained a dangerous condition by "failing to equip one of its highest-volume signalized intersections with a Battery Backup System despite decades of traffic volume data accepted traffic engineering standards, readily available technology, and actual notice of the foreseeable consequences of power outages. Plaintiff does not contend that the dangerous condition was merely the existence of an inoperative traffic signal on December 29, 2021. Rather, Plaintiff contends that the dangerous condition existed well before December 29, 2021..." (Opp. at p. 11.) Also, Plaintiff states that, unlike Chowdhury, Plaintiff has presented competent expert testimony identifying a specific engineering measure that would have prevented the dangerous condition.

Plaintiff

argues that the absence of a Battery Backup System at this high-volume, multi-lane intersection was a substantial factor in creating the dangerous condition that existed on December 29, 2021. (PUMF 62; Gonzalez Decl., p. 7, ¶ 24; Ex. C-G.) Plaintiff asserts that the City's failure to equip the high-volume, multi-lane intersection with a Battery Backup System substantially increased the risk that motorists would encounter an uncontrolled dark intersection during foreseeable power outages. (PUMF 54.) Plaintiff further contends that the City's request for traffic control demonstrates that City personnel recognized that the dark, inoperative traffic signal created a hazardous condition requiring intervention. (PUMF 60.) Plaintiff asserts that, had a Battery Backup System been installed at the subject intersection, the traffic signals would have remained operational during the power outage, eliminating the uncontrolled condition that existed at the time of Plaintiff's collision. (PUMF 61; Gonzalez Decl. ¶ 16, Ex. F (March 21, 2001 Memorandum issued by the California Department of Transportation).)

No

reply has been filed.

The

Court finds that the City has satisfied its burden as the moving party, and

Plaintiff has failed to raise a triable issue of material fact as to whether a dangerous condition existed within the meaning of the applicable Government Code sections. The Court agrees with the City that Chowdhury, supra, 38 Cal.App.4th 1187 is analogous to the present case, which held that “an obviously inoperative traffic signal caused by an area-wide electrical power failure is not a dangerous condition of public property as a matter of law because the inoperative signals are automatically converted into stop signs by statute.” (Id. at p. 1190.) Much like Chowdhury, Plaintiff’s claims against the City arise from an accident that occurred at an intersection with inoperative traffic signals due to a power outage. (See Compl; UMF 6, 8, 18.)

The Court is not persuaded by Plaintiff’s attempts to distinguish the present case from Chowdhury. Plaintiff’s arguments regarding the cause of the inoperative traffic signals and the lack of a Battery Backup System do not change the fact that the condition at issue here is the inoperative traffic signal, which is not a dangerous condition as a matter of law. (Ibid.) Plaintiff fails to adequately explain or cite any authority in support of her argument the purported cause of the dangerous condition (i.e., the lack of a Battery Backup System) distinguishes this case from Chowdhury. Plaintiff’s arguments with respect to the Battery Backup System and the high-volume intersection might support a finding that the City was negligent in creating a dangerous condition if the inoperative signal were such a condition. But Chowdhury establishes that it is not.

Accordingly,
the City’s motion for summary adjudication of the second cause of action is GRANTED.